

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUBC056192: LIVE OAK BANKING COMPANY, A NORTH CAROLINA
CORPORATION vs TAJ UNITS HOLDINGS, LLC, A MISSOURI LIMITED
LIABILITY COMPANY, et al.**

07/17/2026 in Department 41

Motion For Order Authorizing Service by Alternative Means

Motion: Plaintiff Live Oak Banking Company's Motion for Order Permitting Service of Summons by Electronic Means (*Unopposed*)

The Court GRANTS Plaintiff Live Oak Banking Company's Motion for Order Permitting Service of Summons by Electronic Means pursuant to Code of Civil Procedure section 413.30.

Effective January 1, 2025, Code Civil Procedure section 413.30 provides:

(a) (1) If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court.

(2) A plaintiff seeking to establish reasonable diligence under this section shall set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found.

(b) This section does not apply in an action against a governmental entity or an agent or employee of the governmental entity who has been sued in an official or individual capacity.

Here, the requirements have been satisfied. Thus, Plaintiff may serve the Defendants with Service of Summons in the following manner: (1) Plaintiff shall email Defendants, as well as Thomas A. Jovicich, with the following subject line: "Service of Summons by Order of the Honorable Dennis Hayashi, Judge of the Ventura Superior Court, Case No. 2025CUBC056192." (2) Plaintiff shall thereafter mail each Defendant all documents, as well as a copy of the Notice of Ruling of the hearing on this matter, to 980 Via Anita, Newbury Park, California 91320 and 60 N. Via El Toro, Newbury Park, California 91320.

Service shall be deemed effective upon (a) transmission of the Service Documents by email; (2) transmission of the Service Documents by LinkedIn direct message; and (c) deposit of the Service Documents in first-class, certified mail, return receipt requested, all as confirmed by a sworn proof of service detailing the date and time of mailing and transmission and attaching copies of the sent materials, email transmission, and LinkedIn message confirmation.

Counsel for Plaintiff to give notice of this Court's ruling.